

Gajjala Ram Prasad vs G.Sunitha on 29 January, 2020

Author: G. Shyam Prasad

Bench: G. Shyam Prasad

HON'BLE SRI JUSTICE G. SHYAM PRASAD

CIVIL REVISION PETITION No.2781 OF 2018

ORDER:

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1. This Revision Petition is arising out of the order passed in I.A.No.468 of 2017 in F.C.O.P.No.20 of 2016, dated 06.04.2018 by the learned IV Additional District Judge-cum- Family Court, Kurnool.

2. Heard learned counsel for the petitioner.

3. Learned counsel for the petitioner submits that notices have been served on the learned counsel for the respondent to appear before the Court. However, none appears on behalf of the respondents.

4. The revision petitioner is the husband of the respondent. He has filed a petition under Order VI Rule 17 C.P.C and Section 151 C.P.C for amendment of pleadings. The said petition has been dismissed by the trial Court on the ground that as per the provisions under Section 13(1)(ii) of the Hindu Marriage Act, 1955 (for short "the Act") the conversion must be subsequent to the marriage and then only the petitioner can take the defence.

5. It is to be seen here whether Section 13(1) ii of the Act is applicable in this case. Section 13(1)(ii) of the Act reads as under:

"(ii) has ceased to be a Hindu by conversion to another religion;

or,"

6. Whether the petitioner has converted into Christian; or Whether the respondent has ceased to be a Hindu by conversion to another religion are questions of fact, which can be decided only after adducing evidence by both the parties and also on production of relevant documents if there are any.

7. The trial Court comes to a conclusion that as per Section 13 of the Act, the conversion must be subsequent to the marriage, whereas, Section 13(1)(ii) reveals that the party "ceased to be a Hindu by conversion to another religion" whether before or after commencement of the Act.

8. Further observation of the trial Court is that the respondent has got examined herself as R.W.1 and admitted in her evidence that she goes to Church every week. Basing on that admission, the trial Court comes to a conclusion that the petitioner has been converted into another religion. The said findings of trial Court are also not correct without there being sufficient evidence with regard to conversion into Christianity.

9. Learned trial Court also comes to a conclusion that the amendment goes to the root of the case as it changes the very cause of action. The HMOP is filed for divorce on the grounds of cruelty and desertion. The contention of the petitioner is that the respondent has converted into another religion and, it has come to the notice subsequently and therefore, he intends to take additional ground of change of religion in the divorce petition. Therefore, the petitioner has filed the petition under Order VI Rule 17 C.P.C for amendment of the pleadings to add the ground of change of religion.

10. Whether the respondent has changed her religion or not is a question of fact that can be decided in the main proceedings. Therefore, dismissal of the petition filed for amendment is not supported by any plausible reasons. Hence, the order passed by the trial Court is set aside.

11. With the above observations, the petition is allowed. The trial Court may dispose of the OP without getting influenced by any of the findings in this order. The petitioner shall carry out amendment accordingly. No costs.

Miscellaneous petitions, if any, pending shall also stand closed.

G. SHYAM PRASAD,J Date: 29.01.2020 RJS/Mjl HON'BLE SRI
JUSTICE G. SHYAM PRASAD CIVIL REVISION PETITION No.2781 of 2018 Date: 29.01.2020 RJS